

Company: «CompanyName»

Insured: «NamedInsured»

Policy Number: «PolicyNum»

Endorsement Effective Date: «PolEffDate»

PUBLIC COMPANY LIABILITY INSURANCE

PRIOR ACTS EXCLUSION WITH EXCEPTION FOR PUBLIC OFFERING PREPARATION

It is agreed that:

I. Section **Part 5, Common Exclusions** of this Policy is amended by the addition of the following:

In addition to the Exclusions listed in the **Coverage Parts**, the **Insurer** shall not be liable under this Policy to pay any **Loss** or other payment arising from any matter or **Claim** made against any **Insured**:

1. based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **Wrongful Act** occurring prior to the **Prior Acts Date** or any **Wrongful Act** occurring on or subsequent to the **Prior Acts Date** that together with a **Wrongful Act** occurring prior to the **Prior Acts Date** would constitute **Interrelated Wrongful Acts**;

Provided however, this exclusion shall not apply to any **Securities Claim** made against an **Insured** for any **Wrongful Act** in connection with the **Named Insured's** preparations and actions taken to commence the **IPO** including:

- a. any road show presentation to potential investors made by the **Insured's** in connection with the **IPO**; or
- b. any S-1 registration statements filed with the United States Securities and Exchange Commission ("SEC") in connection with the **IPO**.

II. Section **Part 4, Common Definitions** of this Policy is amended by the addition of the following:

1. **IPO** means the initial public offering of securities of the **Named Insured** commencing on «IPOMonthDateYear».
2. **Prior Acts Date** means «PriorMonthDateYear».

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS SHALL REMAIN THE SAME.